

## **General Risk Disclosure**

**This Risk Disclosure Notice is part of the Client Agreements as defined in our Terms & Conditions**

**This notice provides you with information about the risks associated with investment products, in which you may invest, through services provided to you by Amber Rock Trade.**

**Amber Rock Trade provides a wide range of investment services in relation to a number of products through its regulated entity.**

**If you decide to continue and open an account with us, you are confirming that you are aware of and understand the risks.**

**You should further ensure that you are able to monitor positions on your account at all times, as you are solely responsible for this. We are not responsible for monitoring positions on your account.**

**Please be aware of all fees, costs and charges that apply to you, because such costs and charges will affect your profitability.**

**Any opinions, news, research, analyses, prices, or other information contained on this website are provided as general market commentary, and do not constitute investment advice. Amber Rock Trade shall not be**

responsible for any loss arising from any investment based on any recommendation, forecast or other information provided.

We, or the relevant exchanges, or the relevant third parties, which provide Market Data, do not guarantee that the Market Data we provide is always accurate, correct, or up to date although we will take reasonable steps to ensure that it is. Importantly, Market Data is not financial advice and we are not responsible or liable for any action which you take or do not take based on such Market Data. We and the relevant third parties, including exchanges or other providers of Market Data, do not accept any liability (whether in tort or contract or otherwise) for any loss or damage arising from any inaccuracies or omissions within the Market Data or your use of it. If you want to use the information to help you with your own investment decisions, you do this at your own risk.

Past performance is not an indication of future performance. The value of investments can go down as well as up.

Your account will be held in USD which may be different from the currency you used to deposit. Accordingly, you should be aware of currency fluctuations.

It is possible that the market price could have changed between order placement and execution time, and, therefore, we cannot guarantee that the price requested will be the same as the price at which the order is executed, therefore, the price you receive can be in your favour or against you.

**Investment products offered by Amber Rock Trade include stocks, Exchange-Traded Funds (ETFs) and cryptocurrencies. In addition, Amber Rock Trade offers contracts for differences (CFDs) that offer exposure to currencies, commodities and indices.**

**Any transactions relating to stocks, ETFs or cryptocurrencies in which Amber Rock Trade offers you leverage or allows you to enter into short transactions, and/or some copy trading transactions (including Smart Portfolios), shall be considered CFD transactions.**

**All of these products carry a high degree of risk and are not suitable for many investors. This notice provides you with information about the risks associated with these products, but it cannot explain all of the risks nor how such risks relate to your personal circumstances.**

**Therefore, you should seek professional advice. It is important that you fully understand the risks involved before deciding to trade with Amber Rock Trade, that you have adequate financial resources to bear such risks and that you monitor your positions carefully. Trading involves risk to your capital. You should not invest money that you cannot afford to lose.**

**CFD stands for “Contract For Difference,” meaning you are not buying the underlying asset, but, rather, purchasing a contract to settle the difference in the initial and ending price of the asset. When trading CFDs, you generally trade on margin, which means you only have to deposit a small percentage of the overall value of your position. This is known as “Leverage”, and even small market movements may have great impact, negative or positive, on your trading account.**

**If the market moves against you, you may sustain a total loss greater than the funds invested in a specific position. You are responsible for all losses in your account.**

**Before deciding to trade on margin, you should carefully consider your investment objectives, level of experience, and risk appetite. The characteristics of our CFDs can vary substantially from the actual underlying market or instrument. CFDs are complex instruments and come with a high risk of losing money rapidly due to leverage. You should consider whether you understand how CFDs work, and whether you can afford to take the high risk of losing your money.**

**CFDs are not suited to the long-term investor. If you hold a CFD open over a long period of time, the associated costs increase (such as overnight fees), and it may be more beneficial for you to buy the underlying asset instead. Sudden market movements, known as “gapping” may occur, causing a dramatic shift in the price of an underlying asset. Gapping may occur when the underlying market is closed, meaning the price on the underlying market may open at a significantly different level, and at a less advantageous price for you.**

**At all times during which you have open positions, you must ensure that your account meets our margin requirements, which may change from time to time. Therefore, if our price moves against you, or if our margin requirements have changed, you may need to provide us with significant additional funds to meet your margin requirement at short notice, to maintain your open positions. If you do not do this, we will be entitled to close one or more or all**

of your positions and you alone will be responsible for any losses incurred as a result.

**CRYPTOCURRENCY MARKETS ARE DETERMINED BY DEMAND AND SUPPLY ONLY.** The Cryptocurrency market is a dynamic arena and its respective prices are often highly unpredictable and volatile. The Cryptocurrency prices are usually not transparent, highly speculative and susceptible to market manipulation. In the worst-case scenario, the product could be rendered worthless.

It is important to make a distinction between indicative prices which are displayed on charts and dealable prices which are displayed on our trading platform. Indicative quotes only give an indication of where the market is. Because Cryptocurrency markets are decentralised, meaning they lack a single central exchange where all transactions are conducted, each market maker may quote slightly different prices. Therefore, any prices displayed on any chart made available by us or by a third party will only reflect “indicative” prices and not necessarily actual “dealing” prices where trades can be executed.

Cryptocurrency trading is prone to being misused for illegal activities due to the anonymity of transactions and investors would be adversely affected if law enforcement agencies were to investigate any alleged illicit activities.

**ACCORDINGLY, CRYPTOCURRENCIES SHOULD BE SEEN AS AN EXTREMELY HIGH-RISK ASSET AND YOU SHOULD NEVER INVEST FUNDS THAT YOU CANNOT AFFORD TO LOSE.**

**Given the foregoing, Cryptocurrencies are not appropriate for all investors. You should not deal in these products unless you have the necessary knowledge and expertise, understand these products' characteristics and your exposure to risk. You should also be satisfied that the product is suitable for you in light of your circumstances and financial position. In addition, use of our Services can never be considered a safe investment, rather, only an investment with a high risk of loss inherently associated with them.**

**Furthermore, our own spread is added to online quotes which makes a trade on our websites even more volatile.**

**The risk of loss in trading Cryptocurrencies can be substantial. You should, therefore, carefully consider whether such trading is suitable for you in light of your circumstances and financial resources. You should be aware that you may sustain a total loss of the funds in your account. If the market moves against your position, we may ask you to provide a substantial amount of additional margin funds on short notice, in order to maintain your position. If you do not provide the required funds within the time frame required by us, your position may be liquidated at a loss, and you will be liable for any resulting deficit in your account**

**Under certain market conditions, you may find it difficult or impossible to liquidate a position. This can occur, for example, when the market reaches a daily price fluctuation limit ("limit move"), if there is insufficient liquidity in the market.**

**Certain crypto assets may carry additional or specific risks.**

**Newly issued cryptocurrencies might carry additional risks you need to consider. Limited liquidity or difficulties to trade the asset after you've bought it. This means prices could be volatile, going up and down quickly, and liquidity may be limited, all depending on supply and demand. We cannot control these external factors.**

**Since blockchain is an independent public peer-to peer network and is not controlled in any way or manner by Amber Rock Trade, Amber Rock Trade shall not be responsible for any failure and/or mistake and/or error and/or breach which shall occur in blockchain or in any other networks in which the Cryptocurrencies are being issued and/or traded. You will be bound and subject to any change and/or amendments in the blockchain system and subject to any applicable law which may apply to the blockchain. We make no representation or warranty of any kind, express or implied, statutory or otherwise, regarding the blockchain functionality nor for any breach of security in the blockchain.**

**Amber Rock Trade does not own or control the underlying software protocols which govern the operation of Cryptocurrencies available for trading on our platform. In general, the underlying protocols are open source and anyone can use, copy, modify, and distribute them. Amber Rock Trade is not responsible for the operation of the underlying protocols and Amber Rock Trade makes no guarantee of their functionality, security, or availability. The underlying protocols are subject to sudden changes in operating rules ("Forks"), and such Forks may materially affect the value, function, and/or even the name of the Cryptocurrency Amber Rock Trade holds for your benefit. In the event of a Fork, Amber Rock Trade may temporarily suspend Amber Rock Trade operations (with or without advance notice) and Amber Rock Trade may (a) configure or reconfigure its systems or (b) decide not to support (or cease supporting) the Forked protocol entirely. Amber Rock Trade**

may, but is not obligated to do so, adjust your account in respect of a Fork, depending on the circumstances of each event attributable to any specific Cryptocurrency which you hold.

We may elect to execute any order and/or hold any fiat money and cryptocurrencies via a Third Party. Such Third Parties are not banks that hold their fiat money/virtual currency as a deposit. If any such Third Party loses any money, fails or goes out of business, there is no specific legal protection that covers you for losses arising from any funds you may have held with such a Third Party, even when such party is registered with a national authority. Depending on the structure and security of the Amber Rock Trade Money crypto wallet, some individuals may be vulnerable to hacks, resulting in the theft of virtual currency or loss of customer assets. Amber Rock Trade will not be responsible in the event of losses caused by those Third Parties.

While trading on our website and/or applications, system errors may occur. You should be aware of the risks that may result from any system failure which could mean that your order may be delayed or fail.

In the event of a force majeure scenario, the company will not be held liable for any loss, damage or inconvenience suffered due to circumstances beyond the company's control.

All clients accept that trading represents a fundamentally risky form of investment and therefore, should only be approached and utilized by those with the relevant knowledge, experience and financial background. Volatility can be extremely high and the potential for facing heavy losses in a very short period of time is often high. It is perfectly possible for the entirety of the funds within an account to be lost instantaneously, even if the asset in question



swings just fractionally in the wrong direction at the wrong time. It is, therefore, imperative that traders only ever invest disposable capital the likes of which is not dependent upon for facilitating a basic lifestyle. With outcomes being comprehensively impossible to predict accurately 100% of the time, it is important to ensure that your business and your life in general will not be detrimentally impacted if you are unsuccessful in any given trade. As such, the company's customers confirm that all capital used for investment purposes is risk capital and therefore total loss with any investment will not detrimentally affect their lives in any way. Clients fully acknowledge the fact that each and every investment presents a relatively high risk of loss and that in the event of loss the clients and only the client bears full responsibility. Individuals who do not have sufficient risk capital to invest in such ventures must not use the site and services of the company. The Company's activities are not insured by private Client Money Insurance policy, nor by any government's program protecting Clients' funds, including in the event of Company's insolvency or other financial loss caused by any reason whatsoever. Clients agree that the company reserves the right to round-off the last digit of asset and option prices. In addition, option price adjustments will be made by the company in accordance with any adjustments made to the prices of base assets. Clients agree that the company reserves the right not to submit the client's trade and/or investment to the market and/or to any other relevant place. In this scenario, the company shall pay the client's profit if the client closed position and/or trade and/or investment with profit. This scenario can apply even if the client can see the trade and/or investment in the market and/or the trading platform. In any event, the customers' deposits won't be a debt obligation. And no customers will ever be creditors of the company.

A daily financing charge may apply to each Stock and/or Crypto and/or CFDs and/or financial instruments open position at the closing of The Company's trading day. In case such charge is applicable - it will be deducted directly

from the Client's account balance. The method of calculation of the financing charge varies according to the type of financial instrument. The Company reserves the right to change the method of calculating the financing charge and/or the financing rates. Changes in our fees and/or interest rates and/or calculations and/or financing charge shall be at our own discretion and without notice. The Client's responsibility is to check the daily financing charge and/or fees rate and/or interest rates and/or changes in rates (by contact our Company by e-mail or phone). The Client always needs to check the current fees and rates. Please note, the fee may change quickly due to market conditions (changes in interest rates, volatility, liquidity, etc.) and due to various risk-related matters that are at the Company's. The Company charges fees for keeping a trade for more than 24hr and/or for more than one business day. The Company charges the fee directly from the Client's balance. The Company reserves the right to change the method of calculating the fee rate. Changes in our fees rates and calculations shall be at our own discretion and without notice. The Client's responsibility is to check the fees rate and/or for changes (by contact our Company by e-mail or phone). The Client always needs to check the current fees. Please note, the fee may change quickly due to market conditions (changes in interest rates, volatility, liquidity, etc.) and due to various risk-related matters that are at the Company's sole discretion.

You acknowledge that there are risks associated with utilising an Internet-based trading system including, but not limited to, the failure of hardware, software, and Internet connections, the risk of malicious software introduction, the risk that third parties may obtain unauthorized access to information and/or assets (including your Cryptocurrencies) stored on your behalf, cyber attack, Cryptocurrency network failure (such as blockchain), computer viruses, communication failures, disruptions, errors, distortions or delays you may experience when trading via the Services, howsoever caused, spyware, scareware, Trojan horses, worms or other malware that may affect

**your computer or other equipment, or any phishing, spoofing or other attack. You should also be aware that SMS and email services are vulnerable to spoofing and phishing attacks and should use care in reviewing messages purporting to originate from us.**

**By using our services, you agree to the above and confirm - You should seek advice from an independent and suitably licensed financial advisor and ensure that you have the risk appetite, relevant experience and knowledge before you decide to trade. Under no circumstances shall Amber Rock Trade have any liability to any person or entity for any direct, indirect, special, consequential or incidental damages whatsoever. Trading requires skills, knowledge and understanding of relevant risks and is not suitable for everyone; Leveraged trading activity involves substantial risk of losing all invested funds within a short time period; The Company is the counterparty in your transactions and therefore is the seller when you are buying and the buyer when you are selling.**

**Using leverage and margin - We allow you to trade instruments using leverage. Leverage is a form of borrowing which allows you to deposit only a part of the cost of your transaction upfront. This deposit is called "margin" and is used by us as security against any potential losses you may incur. The more leverage you use, the less margin you need. Money being used as margin cannot be taken out of your account. Different amounts of leverage apply to different underlying products. It is your responsibility to monitor the money in your account against your potential losses, the margin required, and whether your position is close to your stop level, as we will not notify you when this happens. If you do not have enough money in your account to meet the margin requirement on a certain position, you should: close your open position to stop you losing more money; partially close your positions; and/or adjust your stop levels. The ability to adjust your stop levels is subject to you having the**

appropriate funds in your account. Unless you carry out one or more of the above steps, your trade will be closed irrespective of the total money available in your account or the performance and balance of your other open positions. Your trade will be closed without prior notice to you and without an opportunity for you to choose the timing of liquidation. You acknowledge and accept the fact that in accordance with legal regulations and requirements, the company may freeze or restrict accounts, impose limitations on services offered, deduct tax payments of any kind and to any extent or take whatever action may be required, should we be instructed to do so by the relevant authorities. The company also accepts no liability whatsoever for any loss, damage or detrimental consequences suffered as a result of any action taken by the company, in accordance with the express instructions of legal authorities, regulators or financial institutions.

You indemnify us for losses arising from your breach, misuse, default, or unauthorized activity. Clients are obliged to pay the company any and all outstanding charges and commissions upon demand, which we may request at any time either in part or in full, in order to satisfy outstanding debts. In any instances where owed are not repaid as required, we may begin higher level debt collection procedures which will result in all attached costs and legal fees incurred being passed on to the client in question. When such payments are requested the client is obliged to make the payment by the end of the same working day, with payments being made in the specified currency and to the specific bank account as we, the company, specify. By using the sites and services of the company, you expressly agree that any and all charges and expenses arising in connection with payments owed represent the sole responsibility of you, the client – our company and its employees will not be held liable under any legitimate circumstances. This clause will be applicable even after termination of any Agreement between yourself and the company. The company reserves the right to take immediate and extensive action against members suspected of seeking to or exploiting technical problems

which may gain them with an unfair advantage. Where proven, all such traders will have their accounts frozen and be permanently banned from using the company's service. Customers with valid memberships are provided with the conditional right to use the company's intellectual property as made available via the company's primary website for personal use. All such use is strictly non-transferable. Under no circumstances must any of the intellectual property presented be transferred or duplicated without written consent from the company. In addition, material presented by the website must not be removed, edited or changed in any way. The company will not be held liable for any costs, expenses, or losses whatsoever incurred, or suffered by the company customers. In any other instances, the company accepts no responsibility for direct or indirect loss or damage incurred as a result of using the content and services of the company website, any negative outcomes experienced as a result of errors or discrepancies made in the process of placing orders or misinterpretation of any information, or content published anywhere on our website.

By utilizing the company's website and services, you indemnify the company and its employees of any expenses or costs incurred by you the customer which occur as a consequence of any given actions, omissions or errors by you. Neither the Company, its directors, officers, employees, agents or shareholders, nor third party information providers, their directors, officers, employees, agents or shareholders will assume any liability for any loss or damages whatsoever, be they direct or indirect, incurred as a result of accessing the website or using the information and services available on the website, or as a result of the inability to access or use any information or services available on the website. In particular, it is expressly stated that in no event will the company, its directors, officers, employees, agents or shareholders be liable for any loss or damages incurred as a result of errors, technical or otherwise, transmission failures, system overloads, interruptions in services (including but not limited to system maintenance

services), any delay in the transmission of information, incompatibility between the website and your files and/or software (in particular your browser) and/or computer, malfunction, interference, the transmission of a virus onto your computer, unauthorized access (as a result of hacking or piracy activities, for example), the willful blocking of telecommunications tools or networks (as a result of mail-bombing, denial of services attacks, for example) or any other failure or inadequacy on the part of telecommunication or network service providers.

**Provision of Cross-border services** -The products and Services provided by the Company are not intended for any person/s who, based on their nationality, place of business, domicile or for any other reasons, is/are subject to legal provisions which prohibit foreign financial services providers from servicing clients who are residents of these jurisdictions, or which prohibit or restrict legal entities or natural persons from using the services of foreign financial services providers. You confirm that you access this website on your own initiative and without any solicitation from The Company.